NOTICE OF RULE 144A / REGULATION S ELIGIBILITY AND REGISTRATION STATUS

Date of this Notice: 2026-05-16

Re: 7.750% Senior Notes due 2031 (the "Notes"), issued pursuant to the Note Purchase and Registration Rights Agreement dated as of 2023-06-15 (the "Registration Rights Agreement").

1. Original Issuance

1.01 The Notes were originally issued on 2023-06-15 and sold to persons reasonably believed to be qualified institutional buyers in reliance on Rule 144A under the Securities Act of 1933, as amended (the "Securities Act"), and outside the United States to non-U.S. persons in reliance on Regulation S under the Securities Act, consistent with Section 1.02 of the Registration Rights Agreement. The Notes have not, at any time since original issuance, been the subject of an effective registration statement covering their primary offer and sale.

2. The Shelf Registration Covenant and Its Deadlines

2.01 Section 3.01 of the Registration Rights Agreement obligates the Issuer to use commercially reasonable efforts to file with the SEC, and cause to become effective, a shelf registration statement covering resales of the Notes by the Holders. Section 3.02 sets the applicable deadlines: commercially reasonable efforts to file by 2023-09-13 (90 days after the Issue Date) and to cause effectiveness by 2024-01-11 (210 days after the Issue Date).

2.02 As of the date of this Notice, no shelf registration statement covering resales of the Notes has been filed with the SEC, and none has been declared effective. Both deadlines in Section 3.02 have accordingly passed without either condition having been satisfied.

3. Registration Default

3.01 The circumstance described in Section 2.02 above constitutes a Registration Default under Section 3.03 of the Registration Rights Agreement. Consistent with Section 3.03, additional interest has been accruing on the Notes since the effectiveness deadline stated in Section 2.01 above, at a rate escalating according to the schedule set forth in Section 3.03 of the Registration Rights Agreement, and will continue to accrue until the earlier of the cure of the Registration Default and the second anniversary of the Issue Date, as provided in that Section.

3.02 The Issuer has not, as of the date of this Notice, given notice of an intention to cure the Registration Default by completing the shelf registration described in Section 3.01 of the Registration Rights Agreement. Nothing in this Notice should be read as a representation about whether, or when, the Issuer intends to do so; this Notice states the registration status as of its own date only.

4. Current Registration and Exchange Act Status

4.01 As of the date of this Notice, the Notes remain unregistered under the Securities Act and continue to be offered, resold and transferred solely in reliance on Rule 144A (to qualified institutional buyers) and Regulation S (in offshore transactions), on the same basis as at original issuance. The Issuer has not filed, and is not currently obligated to file, periodic reports under Section 13(a) or 15(d) of the Securities Exchange Act of 1934 with respect to the Notes, because no registration statement covering the Notes - whether a resale shelf registration statement or otherwise - has been declared effective.

4.02 This Notice addresses registration and Exchange Act reporting status only. It does not address, and should not be read as resolving, the separate question of which specific disclosure undertakings in any other transaction

document presuppose the Issuer's having become an Exchange Act reporting company with respect to the Notes - that is a question for the document imposing the particular undertaking, read together with the status confirmed in this Notice.

5. Reliance

5.01 This Notice may be relied upon by any Holder of the Notes, and by any prospective transferee to whom a Holder is considering transferring Notes in reliance on Rule 144A or Regulation S, as a statement of the Notes' registration status as of the date of this Notice. This Notice speaks only as of that date and will not be updated to reflect a subsequent change in status; a reader relying on it after a material period has elapsed should confirm current status independently.